

M&S LLC

4869 Telegraph Ave, Oakland, CA 94609

[Date]

[Candidate name]

[Address]

Dear [Candidate name],

We are pleased to offer you a position with **M&S LLC** (“the Company”). The terms of our offer are below.

Item	Detail
Position	[Job title]
Classification	Non-exempt (eligible for overtime)
Location	Hanshin Pocha – Oakland
Reports to	[Manager / title]
Start date	[Date]
Compensation	[\$__ per hour] / [\$__ per year], paid on the Company’s regular paydays (every other Friday (bi-weekly))

Position, pay, and start date. Your specific position, hourly pay rate (and overtime rate), and start date are stated in the “Confirmed Terms” line printed on the Acceptance signature page of this letter. That line is part of, and is incorporated into, this offer.

Pay and hours. As a non-exempt employee, you will be paid for all hours worked and are entitled to overtime and to meal and rest periods under California and applicable local law. You will be paid at least the highest applicable minimum wage for the city where you work.

Contingencies. This offer is contingent on (1) your completing Form I-9 and providing documents establishing your identity and authorization to work in the United States, and (2) a background check where applicable.

At-will employment. Your employment with the Company is at-will. This means you or the Company may end the employment relationship at any time, for any lawful reason or no reason, with or without cause and with or without notice. Nothing in this letter, or in any Company document or statement, is a promise of employment for any specific period, and only a written agreement signed by an officer of the Company can change the at-will relationship.

Company policies. Your employment is subject to the Company’s Employee Handbook and policies, which the Company may change from time to time. The Handbook is not a contract.

Arbitration. As a condition of employment, you will be asked to sign the Company’s Mutual Arbitration Agreement, which is a separate document.

Entire offer. This letter states the terms of our offer and supersedes any prior statements or promises. It is not a contract guaranteeing employment for any period.

To accept, sign on the signature page that follows. We look forward to having you on the team.

Sincerely,

Authorized representative, **M&S LLC**

M&S LLC

ACCEPTANCE — EMPLOYEE SIGNATURE

I accept this offer of at-will employment and understand that either I or the Company may end the employment relationship at any time, with or without cause or notice.

Employee signature

Date